

Ex.No.1681/2023

Decree Holder No.1 was hospitalized because of ill-health and was discharged recently and her presence is secured today through video conference wherein she has expressed her willingness for compromise. Other Decree Holders are present.

Judgment Debtors (Judgment Debtor No.2 as General Power of Attorney holder of Judgment Debtor No.1) are present. Auction purchasers – Smt.Aruna.J and Sri Nishwanth.R, S/O.Raja Reddy are present.

The Decree Holders and Judgment Debtors filed memo stating that they have successfully executed registered Sale Deed on 07.06.2024 in favour of purchasers Smt.Aruna.J and Sri Nishwanth.R, thereby absolutely conveying petition schedule property for total sale consideration of Rs.1,56,00,000/- (One crore fifty six lakh only). After deducting all the expenditure out of total sale consideration it will come to Rs.1,49,19,000/- which is deposited to the Court.

Now they are entitled for their respective share proceeds as per preliminary decree passed in O.S.No.1341/2015 and final decree passed in FDP.99/2021 i.e. 1/9th share each. Out of the said amount of Rs.1,49,19,000/-, Decree Holders and Judgment Debtors are entitled as stated in the memo. Hence, it is prayed to release the same to their respective

Bank accounts.

Records reveal that sum of Rs.1,49,19,000/- is deposited by the auction purchaser to the court out of which sum of Rs.60,00,000/- is kept as Fixed Deposit in Karnataka Bank Ltd., vide order dated 02.03.2024.

The office note shows that a sum of Rs.89,19,000/- is in CCD and an amount of Rs.60,42,000/- received from Karnataka Bank F.D. and sent the same to S.B.I. for clearance but R.O. challen has not yet returned.

Auction purchasers /their counsel present and submitted no objection to release the amount in favour of Decree Holders and Judgment Debtors.

In view of the same Joint memo filed by both Decree Holders and Judgment Debtors is accepted and execution petition is closed as fully satisfied.

Decree Holders and Judgment Debtors have produced affidavit, cancelled cheque, vouchers, Bank account details, Aadhar Card and PAN Card.

In view of the same, office is hereby directed to release the amount to the Decree Holders and Judgment Debtors through K-2 to their respective accounts as stated in the Joint memo after credit of F.D. Rs.60,42,000/- to CCD on proper identification of the parties through their advocates as per law.

**XIX ADDL.CITY CIVIL & SESSIONS
JUDGE, BANGALORE.**